

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN SECONDARY
CYLINDRICAL BATTERIES,
COMPONENTS THEREOF, AND
PRODUCTS CONTAINING THE
SAME**

Investigation No. 337-TA- _____

**COMPLAINT UNDER SECTION 337 OF THE
TARIFF ACT OF 1930, AS AMENDED**

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EXHIBIT LIST

Ex. #	Description
1	OneStop Report on Nanjing Chervon Industry Co., Ltd. (July 8, 2026)
2	U.S. Patent No. 8,420,257
3	U.S. Patent No. 8,420,257 Assignment Record to LG Energy Solution Ltd.
4	List of Foreign and Domestic Counterparts
5	U.S. Patent No. 11,749,866
6	U.S. Patent No. 11,749,866 Assignment Record to LG Energy Solution Ltd.
7	U.S. Patent No. 12,412,924
8	U.S. Patent No. 12,412,924 Assignment Record to LG Energy Solution Ltd.
9	U.S. Patent No. 12,412,965
10	U.S. Patent No. 12,412,965 Assignment Record to LG Energy Solution Ltd.
11	U.S. Patent No. 12,646,735
12	U.S. Patent No. 12,646,735 Assignment Record to LG Energy Solution Ltd.
13C	Confidential List of Licensees
14	U.S. Patent No. 8,420,257 Infringement Chart for EVE 20P
15	U.S. Patent No. 8,420,257 Infringement Chart for EVE 29V
16	U.S. Patent No. 8,420,257 Infringement Chart for EVE 50E
17	U.S. Patent No. 11,749,866 Infringement Chart for EVE 50E
18	U.S. Patent No. 12,412,924 Infringement Chart for EVE 50E
19	U.S. Patent No. 12,412,924 Infringement Chart for EVE 40PL
20	U.S. Patent No. 12,412,965 Infringement Chart for EVE 40PL
21	U.S. Patent No. 12,646,735 Infringement Chart for EVE 40PL
22	Importation Evidence
23C	Confidential Declaration of Sumin Lee
24C	Confidential U.S. Patent No. 8,420,257 Domestic Industry Chart
25C	Confidential U.S. Patent No. 11,749,866 Domestic Industry Chart
26C	Confidential U.S. Patent No. 12,412,924 Domestic Industry Chart for DI Product 1
27C	Confidential U.S. Patent No. 12,412,924 Domestic Industry Chart for DI Product 2
28C	Confidential U.S. Patent No. 12,412,965 Domestic Industry Chart
29C	Confidential U.S. Patent No. 12,646,735 Domestic Industry Chart

APPENDIX LIST

Appendices	Description
A	U.S. Patent No. 8,420,257 Prosecution History
B	KR101184970B1 Prosecution History
C	WO2011/046261A1 Prosecution History
D	U.S. Patent No. 11,749,866 Prosecution History
E	KR102517397B1 Prosecution History
F	U.S. Patent No. 12,412,924 Prosecution History
G	U.S. Patent No. 10,998,536 Prosecution History
H	U.S. Patent No. 11,769,903 Prosecution History
I	U.S. Patent No. 11,973,181 Prosecution History
J	U.S. Patent App. No. 18/631,783 Prosecution History
K	U.S. Patent No. 12,412,965 Prosecution History
L	KR102646837B1 Prosecution History
M	WO20240/19552A1 Prosecution History
N	U.S. Patent No. 12,646,735 Prosecution History
O	KR102126970B1 Prosecution History
P	WO2018/190691 Prosecution History
Q	U.S. Patent No. 11,652,232 Prosecution History
R	U.S. Patent No. 11,973,177 Prosecution History
S	U.S. Patent No. 12,341,147 Prosecution History
T	U.S. Patent No. 12,334,493 Prosecution History
U	U.S. Patent App. No. 19/207,758 Prosecution History

I. INTRODUCTION

1. Complainants LG Energy Solution Ltd. (“LGES”), and LG Energy Solution Arizona, Inc. (“LGES Arizona”) (collectively, “Complainants”) respectfully file this Complaint under Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, to stop the unlawful importation into the United States, sale for importation into the United States, and/or sale within the United States after importation of certain secondary cylindrical batteries, components thereof, and products containing the same, that infringe valid and enforceable patents owned by LGES.

2. As discussed in Section II of this Complaint, LGES is one of the world’s foremost developers and manufacturers of advanced secondary battery technology. After decades of sustained investment in research, development, and engineering, and billions of dollars invested globally, including substantial investments in the United States, LGES developed, manufactured, and commercialized battery technology that has transformed multiple industries, such as power tools, consumer electronics, electric vehicles, and energy storage. Central to LGES’s innovations are its proprietary designs for secondary cylindrical battery cells along with critical safety and performance components such as battery cap assemblies, electrodes, separators, safety structures, and current interrupt devices. Complainants continue to invest heavily in innovation to advance these technologies and bring more efficient, safer, and cost-effective batteries to market. The commercial significance of Complainants’ innovations has attracted competitors who seek to benefit from LGES’s patented technology without authorization.

3. The Proposed Respondents are EVE Energy Co., Ltd., EVE Energy North America Corporation, and EVE Energy US Holding LLC (collectively, “EVE”); Robert Bosch GmbH and Robert Bosch Tool Corporation (collectively, “Bosch”); Koki Holdings Co., Ltd. and Koki Holdings America Ltd. (collectively, “Koki”); and Chervon (China) Trading Co., Ltd., Nanjing

Chervon Industry Co., Ltd., and Chervon North America, Inc. (collectively, “Chervon”) (all, collectively, “Respondents”).

4. This Complaint is based on Respondents’ unlawful importation into the United States, sale for importation into the United States, and/or sale within the United States after importation of secondary cylindrical batteries, components thereof, and products containing the same (hereinafter “Accused Products”)¹ that infringe one or more claims of the following LGES patents (the “Asserted Patents”):

Asserted Patent	Claims Asserted Against Respondents (independent claims in bold)
U.S. Patent No. 8,420,257	1-3, 4-6
U.S. Patent No. 11,749,866	1, 4, 5, 6, 9
U.S. Patent No. 12,412,924	1-9, 12, 14, 16-19, 21-25, 27-30
U.S. Patent No. 12,412,965	1, 4, 7-11, 14, 15, 19, 20, 22-24, 26-33
U.S. Patent No. 12,646,735	1, 6, 10, 12, 13, 15

5. Pursuant to Commission Rules 210.12(a)(12) and 210.10(b)(1), the Accused Products are secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same.

6. To stop Respondents’ unlawful acts, Complainants request a permanent limited exclusion order under 19 U.S.C. § 1337(d)(1) barring from entry into the United States any secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same, that infringe one or more Asserted Patents and that are imported into the United States, sold for importation into the United States, and/or sold in the United States after importation by or on behalf of Respondents.

¹ Any identification of a specific model or type of Accused Product in this Complaint is not intended to limit the scope of this investigation.

7. Complainants also seek permanent cease and desist orders under 19 U.S.C. § 1337(f) prohibiting Respondents and their affiliates, subsidiaries, successors, or assigns from importing, selling for importation, marketing, demonstrating, distributing, repairing, refurbishing, offering for sale, selling after importation or transferring (except for exportation), including moving or shipping inventory in the United States or soliciting United States agents or distributors, or aiding and abetting other entities in the importation, sale for importation, sale after importation, or transfer (except for exportation) of secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same, that infringe one or more Asserted Patents.

8. Complainants further seek the imposition of a bond upon importation of infringing products during the 60-day Presidential review period pursuant to 19 U.S.C. § 1337(j).

9. As set forth in Section IX of this Complaint, an industry pursuant to 19 U.S.C. § 1337(a)(2) is in the process of being established in relation to Complainants' products that are protected by the Asserted Patents.

II. COMPLAINANTS

10. LG Energy Solution, Ltd. is a corporation organized and existing under the laws of the Republic of Korea, with its principal place of business at Parc. 1 Tower, 108, Yeoui-daero, Yeongdeungpo-gu, Seoul, Republic of Korea 07355.

11. LG Energy Solution Arizona, Inc. is a corporation organized and existing under the laws of the United States, with its principal place of business at 335 E. Pecos Road, Queen Creek, AZ 85140.

12. After decades of research and substantial investment both in the United States and globally, LGES has become one of the world's leading manufacturers of advanced secondary cylindrical batteries.

A. LGES's History

13. In 1992, as a division under LG Chem, Ltd. at the time, LGES became the first Korean company to research rechargeable batteries. *See Leading Battery Innovation with Decades of Experience and Extensive Patent Portfolio*, LG Energy Solution (Aug. 20, 2024), <https://news.lgensol.com/company-news/supplementary-stories/3167/> (last visited July 21, 2026). By 1999, LGES successfully mass-produced secondary cylindrical batteries. *See History*, LG Energy Solution, <https://www.lgensol.com/mobile/en/company/info-history> (last visited July 21, 2026).

14. In 2000, LGES established an R&D facility in Colorado for the development of secondary cylindrical batteries, which later moved to Detroit. *See How LG Energy Solution Pioneered North American Battery Industry*, LG Energy Solution (2022), <https://news.lgensol.com/company-news/supplementary-stories/1503/> (last visited July 21, 2026). In 2009, LGES was selected to supply lithium-ion batteries for GM's first generation Chevrolet Volt, the world's first mass-produced plug-in hybrid extended-range electric vehicle. *See* <https://www.prnewswire.com/news-releases/chevrolet-bolt-ev-to-be-developed-through-strategic-partnership-between-gm-and-lg-300162895.html> (last visited July 21, 2026).

15. In 2020, LGES split off from LG Chem and became an independent company. *See Fast Facts*, LG Energy Solution, <https://news.lgensol.com/company-overview/fast-facts/> (last visited July 21, 2026).

16. Today, LGES is a leading global manufacturer of secondary cylindrical batteries for electric vehicles, mobility, IT, and energy storage systems, with more than 30 years of experience in revolutionary battery technology and extensive research and development, and is the top battery-related patent holder in the world with over 90,000 patents. *See Fast Facts*, LG Energy Solution, <https://news.lgensol.com/company-overview/fast-facts/> (last visited July 21, 2026).

LGES has identified over 1,000 patents in its portfolio as being highly strategic, of which 580 are likely infringed by competing battery manufacturers. *See LG Energy Solution to Take Firm Stance Against Patent Infringers*, LG Energy Solution (Apr. 24, 2024), <https://news.lgensol.com/company-news/press-releases/2636/> (last visited July 21, 2026).

17. LGES now operates manufacturing facilities throughout the United States including its long-standing plant in Holland, Michigan, joint venture plants with General Motors in Ohio and Tennessee, a joint venture plant with Honda in Ohio, a joint venture plant with Hyundai in Georgia, and an announced manufacturing complex for EV and ESS batteries in Arizona. *See Fast Facts*, LG Energy Solution, <https://news.lgensol.com/company-overview/fast-facts/> (last visited July 21, 2026).

B. LGES Arizona's History

18. LGES Arizona is a wholly owned subsidiary of LGES and was established to own and operate LGES's first secondary cylindrical battery manufacturing plant in the United States. Secondary cylindrical batteries are rechargeable batteries that have a cylindrical form, and such batteries are at issue in this action.

19. In March 2022, LGES announced that it would invest KRW 1.7 trillion (USD 1.4 billion) for the construction of a new cylindrical battery factory in Queen Creek, Arizona, which would be the first cylindrical-type battery manufacturing plant in North America solely invested by a Korean battery manufacturer. <https://news.lgensol.com/company-news/press-releases/1168/> (last visited July 21, 2026); <https://www.azcommerce.com/news-events/news/2022/4/queen-creek-to-house-high-tech-battery-facility/> (last visited July 21, 2026). Batteries produced from the LGES Arizona plant were announced to be supplied to EV manufacturers in North America. *Id.*

20. In March 2023, LGES announced an expanded investment of approximately KRW 7.2 trillion (USD 5.5 billion) to construct a battery manufacturing complex in Queen Creek,

Arizona, comprising two manufacturing facilities. <https://news.lgensol.com/company-news/press-releases/1613/> (last visited July 21, 2026). LGES started construction in Queen Creek in November 2023. <https://news.lgensol.com/company-news/supplementary-stories/2741/> (last visited July 21, 2026).

21. Additional details regarding LGES Arizona's manufacturing complex are set forth in Section IX.B.

III. RESPONDENTS

A. The EVE Respondents

22. On information and belief, EVE Energy Co., Ltd. is a limited liability company organized under the laws of the People's Republic of China, with its principal place of business located at No. 38, Huifeng 7th Road, Zhongkai Hi-Tech Zone, Huizhou, Guangdong, China. On information and belief, EVE was established in 2001 and was first listed on the SZSE in 2009. <https://www.evebattery.com/en/about> (last visited July 21, 2026). Upon information and belief, the U.S. Government on June 8, 2026, designated EVE as a Chinese Military Company under Section 1260H of the National Defense Authorization Act (NDAA), and is restricted from doing business with the U.S. Government pursuant to 10 U.S.C. § 113 note (Section 1260H).

23. On information and belief, EVE Energy North America Corporation is a company organized under the laws of the United States, with its principal place of business located at 7910 N Central Dr, Lewis Center, OH 43035. <https://www.evebatteryusa.com/contact-us> (last visited July 21, 2026).

24. On information and belief, EVE ENERGY US Holding LLC is a limited liability company organized under the laws of the United States, with its principal place of business located at 20191 Windrow Drive, Suite B, Lake Forest, CA 92630. <https://www.evebattery.com/en/contact> (last visited July 21, 2026).

25. As set forth below, on information and belief, the Eve Respondents import into the United States, sell for importation into the United States, and/or sell within the United States after importation secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same, that infringe the Asserted Patents.

B. The Bosch Respondents

26. On information and belief, Robert Bosch GmbH is a company organized under the laws of Germany, with its principal place of business located at Robert-Bosch-Platz 170839 Gerlingen-Schillerhöhe, Germany. <https://www.bosch.com/corporate-information/?prevent-auto-open-privacy-settings> (last visited July 21, 2026).

27. On information and belief, Robert Bosch Tool Corporation is a company organized under the laws of Illinois, with its principal place of business located at 1800 West Central Road, Mount Prospect, IL 60056. <https://www.bosch-pt.com/ptlegalpages/us/ptna/en/imprint> (last visited July 21, 2026).

28. As set forth below, on information and belief, the Bosch Respondents import into the United States, sell for importation into the United States, and/or sell within the United States after importation secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same, that infringe the Asserted Patents. In particular, on information and belief, the Bosch Respondents import into the United States, sell for importation into the United States, and/or sell within the United States after importation products that contain infringing EVE secondary cylindrical batteries.

C. The Koki Respondents

29. On information and belief, Koki Holdings Co., Ltd. is a limited liability company organized under the laws of Japan, with its principal place of business located at Shinagawa Intercity Tower A, 20th Floor 15-1, Konan 2-chome, Minato-ku, Tokyo 108-6020, Japan. <https://www.metabo-hpt.com/about/about-us> (last visited July 21, 2026).

30. On information and belief, Koki Holdings America Ltd. is a limited liability company organized under the laws of the United States, with its principal place of business located at 1111 Broadway Avenue, Braselton, GA 30517. <https://www.metabo-hpt.com/about/about-us> (last visited July 21, 2026).

31. As set forth below, on information and belief, the Koki Respondents import into the United States, sell for importation into the United States, and/or sell within the United States after importation secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same, that infringe the Asserted Patents.² In particular, on information and belief, the Koki Respondents import into the United States, sell for importation into the United States, and/or sell within the United States after importation products that contain infringing EVE secondary cylindrical batteries.

D. The Chervon Respondents

32. On information and belief, Chervon (China) Trading Co., Ltd. is a company organized under the laws of the People's Republic of China, with its principal place of business

² On information and belief, the Koki Respondents brand the infringing instrumentalities with the trade name "Metabo." See <https://www.metabo-hpt.com/about/about-us> (last accessed July 21, 2026) ("Metabo HPT is the North American brand for the international brand, Hikoki, and our parent company is Koki Holdings").

located at No. 99 Tianyuan West Road, Jiangning Economic and Technical Development Zone, Nanjing, Jiangsu Province, China. <https://global.chervongroup.com/en/who-we-are/global-presence/china> (last visited July 21, 2026).

33. On information and belief, Nanjing Chervon Industry Co., Ltd. is a company organized under the laws of the People's Republic of China, with its principal place of business located No. 529 and 159, Jiangjunc Avenue, Jiangning District, Nanjing (Jiangning Development Zone), Nanjing, Jiangsu, 211111, China. *See* Exhibit 1 (OneStop Report Nanjing Chervon Industry Co., Ltd. dated July 8, 2026).

34. On information and belief, Chervon North America, Inc. is a company organized under the laws of the United States, with its principal place of business located at 1203 E Warrenville Rd., Naperville, IL 60563. <https://apps.ilsos.gov/businessentitysearch/businessentitysearch> (last visited July 21, 2026).

35. As set forth below, on information and belief, the Chervon Respondents import into the United States, sell for importation into the United States, and/or sell within the United States after importation secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same, that infringe the Asserted Patents.³ In particular, on information and belief, the Chervon Respondents import into the United States, sell for importation into the United States, and/or sell within the United States after importation products that contain infringing EVE secondary cylindrical batteries.

³ On information and belief, the Chervon Respondents brand the infringing instrumentalities with the trade name "EGO." *See* <https://global.chervongroup.com/en/what-we-do/our-brands/ego> (last accessed July 21, 2026).

IV. THE TECHNOLOGY AND PRODUCTS AT ISSUE

A. Background of the Technology

36. The technology at issue in this investigation generally relates to the design and manufacturing of secondary cylindrical battery cells.

37. “Secondary” cylindrical batteries are batteries that can be charged, discharged, and recharged. Unlike single-use (primary) batteries, they can be charged and discharged hundreds or even thousands of times by running an electrical current through them to restore the chemical energy inside. Most modern versions use lithium-ion chemistry, where lithium ions shuttle back and forth between negative and positive electrodes (namely, the anode and cathode) through a liquid electrolyte each time the battery charges or discharges. The cylindrical form factor is popular because the form is easy to manufacture at scale, and the shape naturally handles the internal pressure that builds up during charging, making it structurally robust. These battery cells are grouped together in packs to power everything from laptops and power tools to electric vehicles, where thousands of individual cylindrical cells may be electrically coupled to each other in a single pack to deliver the voltage and capacity needed.

B. Products at Issue

38. The Accused Products are secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same.

V. THE ASSERTED PATENTS AND NON-TECHNICAL DESCRIPTIONS OF THE INVENTIONS⁴

39. Complainants assert five patents in this Complaint: U.S. Patent No. 8,420,257 (“the ’257 Patent”); U.S. Patent No. 11,749,866 (“the ’866 Patent”); U.S. Patent No. 12,412,924 (“the ’924 Patent”); U.S. Patent No. 12,412,965 (“the ’965 Patent”); and U.S. Patent No. 12,646,735 (“the ’735 Patent”). These patents are briefly discussed below.

A. The ’257 Patent

1. Identification and Ownership of the ’257 Patent

40. U.S. Patent No. 8,420,257 was duly and lawfully issued by the United States Patent and Trademark Office on April 16, 2013, to LG Chem, Ltd. The ’257 Patent was assigned to LG Energy Solution, Ltd. on October 27, 2021.

41. The ’257 Patent is set to expire on March 29, 2030.

42. The ’257 Patent is titled “Cap Assembly Comprising Gasket Prevented from Sagging,” names Sung Jong Kim, Je Jun Lee, and Cha Hun Ku as co-inventors, and issued from U.S. Patent Application No. 12/861,334, which was filed on August 23, 2010, as a continuation of PCT Application No. PCT/KR2009/008012, filed December 31, 2009, which claims priority from Korean Patent Application No. 10-2009-0097008, filed October 13, 2009.

43. A copy of the ’257 Patent is attached as Exhibit 2.⁵

⁴ All non-technical descriptions of the patents herein are presented to give a general background of those patents. These statements are not intended to be used nor should they be used for purposes of patent claim construction. Complainants present these statements subject to and without waiver of their right to argue that no claim construction is necessary, or that claim terms should be construed in a particular way under claim interpretation jurisprudence and the relevant evidence.

⁵ Complainants have ordered but not yet received a certified copy of the ’257 Patent from the USPTO. Complainants will provide the certified copy of the patent as soon as possible.

44. A copy of the patent assignment record from the named inventors to LGES is attached as Exhibit 3.⁶

45. A copy of the prosecution history of the '257 Patent is included as Appendix A.⁷

46. True and correct copies of each priority application for the '257 Patent and the prosecution histories for such applications are included as Appendices B and C.

2. Foreign Counterparts to the '257 Patent

47. Exhibit 4 lists each foreign patent, each foreign or domestic patent application (not already issued as a patent), and each foreign or domestic patent application that has been denied, abandoned, or withdrawn, corresponding to the '257 Patent, with an indication of the prosecution status of each such patent application.

48. No other foreign patents or foreign patent applications corresponding to the '257 Patent have been filed, abandoned, withdrawn, or rejected.

3. Non-Technical Description of the '257 Patent

49. The '257 Patent describes a cap assembly for a secondary cylindrical battery which helps to safely seal the electrochemical components inside of the battery housing. The cap assembly includes an auxiliary gasket surrounding the outer circumference of a current interrupt device (CID) structurally supports the main gasket to prevent it from sagging away from the safety vent. By seating a portion of the main gasket on the CID and supporting it upwardly or by press-fitting the CID into the main gasket so that the auxiliary gasket provides upward or lateral support.

⁶ Complainants have ordered but not yet received a certified copy of the assignment records for the '257 Patent from the USPTO. Complainants will provide the certified copy of the assignment records as soon as possible.

⁷ Complaints have ordered but not yet received a certified copy of the prosecution history for the '257 Patent from the USPTO. Complainants will provide the certified copy of the prosecution history as soon as possible.

As a result, the cap assembly prevents the main gasket from sagging, effectively minimizing any gap between the main gasket and the safety vent that would otherwise allow electrolyte to leak out of the battery, which could be harmful.

B. The '866 Patent

1. Identification and Ownership of the '866 Patent

50. U.S. Patent No. 11,749,866 was duly and lawfully issued by the United States Patent and Trademark Office on September 5, 2023, to LG Energy Solution, Ltd.

51. The '866 Patent is set to expire on March 24, 2041 (subject to a 194-day patent term adjustment under 35 U.S.C. § 154(b)).

52. The '866 Patent is titled “Secondary Battery,” names Geon Woo Min, Je Jun Lee, and Sang Suk Jung as co-inventors, and issued from U.S. Patent Application No. 17/259,395, which was filed on July 16, 2021, as a national stage entry under 35 U.S.C. § 371 from PCT Application No. PCT/KR2019/015396, filed November 13, 2019, which claims priority from Korean Patent Application No. 10-2018-0149369, filed November 28, 2018.

53. A copy of the '866 Patent is attached as Exhibit 5.⁸

54. A copy of the patent assignment record from the named inventors to LG Energy Solution, Ltd. is attached as Exhibit 6.⁹

55. A copy of the prosecution history of the '866 Patent is included as Appendix D.¹⁰

⁸ Complainants have ordered but not yet received a certified copy of the '866 Patent from the USPTO. Complainants will provide the certified copy of the patent as soon as possible.

⁹ Complainants have ordered but not yet received a certified copy of the assignment records for the '866 Patent from the USPTO. Complainants will provide the certified copy of the assignment records as soon as possible.

¹⁰ Complaints have ordered but not yet received a certified copy of the prosecution history for the '866 Patent from the USPTO. Complainants will provide the certified copy of the prosecution history as soon as possible.

56. True and correct copies of each priority application for the '866 Patent and the prosecution histories for such applications are included as Appendix E.

2. Foreign Counterparts to the '866 Patent

57. Exhibit 4 lists each foreign patent, each foreign or domestic patent application (not already issued as a patent), and each foreign or domestic patent application that has been denied, abandoned, or withdrawn, corresponding to the '866 Patent, with an indication of the prosecution status of each such patent application.

58. No other foreign patents or foreign patent applications corresponding to the '866 Patent have been filed, abandoned, withdrawn, or rejected.

3. Non-Technical Description of the '866 Patent

59. The '866 Patent describes a secondary battery with an assembly inside of a battery cap, which improves battery safety. The assembly includes a safety vent structure in which a safety vent part includes both a rupture notch portion, which defines the boundary of the rupture portion and is designed to rupture or break at a predetermined pressure to vent gas, and a bending notch portion positioned concentrically inward from the rupture notch portion on the bottom surface of the safety vent. When internal pressure increases, the bending notch portion bends rather than ruptures, acting as a hinge that maintains sufficient clearance between the safety vent and the top cap. By ensuring the safety vent does not contact the top cap before reaching the preset venting pressure, the invention improves venting pressure distribution and battery safety.

C. The '924 Patent

1. Identification and Ownership of the '924 Patent

60. U.S. Patent No. 12,412,924 was duly and lawfully issued by the United States Patent and Trademark Office on September 9, 2025, to LG Energy Solution, Ltd.

61. The '924 Patent is set to expire on October 15, 2038.

62. The '924 Patent is titled "Multilayer Nanoporous Separator," names David W. Avison, Steven A. Carlson, and Benjamin Sloan as co-inventors, and issued from U.S. Patent Application No. 19/023,905, which was filed on January 16, 2025, as a continuation of U.S. Patent Application No. 18/631,783, filed April 10, 2024, which is a continuation of U.S. Patent Application No. 17/543,259, filed December 6, 2021, now U.S. Patent No. 11,973,181, which is a continuation of U.S. Patent Application No. 17/223,845, filed April 6, 2021, now U.S. Patent No. 11,769,903, which is a continuation of U.S. Patent Application No. 16/755,294, filed April 10, 2020, now U.S. Patent No. 10,998,536, which is a national stage entry from PCT Application No. PCT/US2018/055862, filed October 15, 2018, which claims priority from U.S. Provisional Patent Application No. 62/572,083, filed October 13, 2017.

63. A copy of the '924 Patent is attached as Exhibit 7.¹¹

64. A copy of the patent assignment record from the named inventors to LG Energy Solution, Ltd. is attached as Exhibit 8.¹²

65. A copy of the prosecution history of the '924 Patent is included as Appendix F.¹³

66. True and correct copies of each priority application for the '924 Patent and the prosecution histories for such applications are included as Appendices G to J.

¹¹ Complainants have ordered but not yet received a certified copy of the '924 Patent from the USPTO. Complainants will provide the certified copy of the patent as soon as possible.

¹² Complainants have ordered but not yet received a certified copy of the assignment records for the '924 Patent from the USPTO. Complainants will provide the certified copy of the assignment records as soon as possible.

¹³ Complaints have ordered but not yet received a certified copy of the prosecution history for the '924 Patent from the USPTO. Complainants will provide the certified copy of the prosecution history as soon as possible.

2. Foreign Counterparts to the '924 Patent

67. Exhibit 4 lists each foreign patent, each foreign or domestic patent application (not already issued as a patent), and each foreign or domestic patent application that has been denied, abandoned, or withdrawn, corresponding to the '924 Patent, with an indication of the prosecution status of each such patent application.

68. No other foreign patents or foreign patent applications corresponding to the '924 Patent have been filed, abandoned, withdrawn, or rejected.

3. Non-Technical Description of the '924 Patent

69. The '924 Patent describes a multilayer separator for a lithium battery comprising a porous polymeric layer coated on one or both sides with an inorganic oxide/polymer composite layer in which the inorganic oxide particles, such as boehmite. The inorganic oxide-polymer composite layer has a low coating weight and is relatively thin, and has very small crystallites. This combination produces a heat-stable, highly porous coating layer that maintains dimensional stability at elevated temperatures, including above the melting point of the underlying polymer film, all at a significantly lower coating weight and thickness than conventional ceramic separator coatings. As a result, the '924 Patent enables safer, lighter, and lower-cost lithium batteries.

D. The '965 Patent

1. Identification and Ownership of the '965 Patent

70. U.S. Patent No. 12,412,965 was duly and lawfully issued by the United States Patent and Trademark Office on September 9, 2025, to LG Energy Solution, Ltd.

71. The '965 Patent is set to expire on July 19, 2043.

72. The '965 Patent is titled "Cylindrical Battery, Battery Pack and Vehicle"; names Yong-hwan Kwon, Dong-Wook Kim, Ji-Young Park, Ju-Nam Son, and Seo-Hyeon Chae as co-inventors, and issued from U.S. Patent Application No. 18/848,306, which was filed on July 19,

2023, as a national stage entry from PCT Application No. PCT/KR2023/010452, filed July 19, 2023, and ultimately to Korean Patent Application Nos. 10-2022-0089226 (July 19, 2022) and 10-2023-0094183 (July 19, 2023).

73. A copy of the '965 Patent is attached as Exhibit 9.¹⁴

74. A copy of the patent assignment record from the named inventors to LG Energy Solution, Ltd. is attached as Exhibit 10.¹⁵

75. A copy of the prosecution history of the '965 Patent is included as Appendix K.¹⁶

76. True and correct copies of each priority application for the '965 Patent and the prosecution histories for such applications are included as Appendices L and M.

2. Foreign Counterparts to the '965 Patent

77. Exhibit 4 lists each foreign patent, each foreign or domestic patent application (not already issued as a patent), and each foreign or domestic patent application that has been denied, abandoned, or withdrawn, corresponding to the '965 Patent, with an indication of the prosecution status of each such patent application.

78. No other foreign patents or foreign patent applications corresponding to the '965 Patent have been filed, abandoned, withdrawn, or rejected.

¹⁴ Complainants have ordered but not yet received a certified copy of the '965 Patent from the USPTO. Complainants will provide the certified copy of the patent as soon as possible.

¹⁵ Complainants have ordered but not yet received a certified copy of the assignment records for the '965 Patent from the USPTO. Complainants will provide the certified copy of the assignment records as soon as possible.

¹⁶ Complaints have ordered but not yet received a certified copy of the prosecution history for the '965 Patent from the USPTO. Complainants will provide the certified copy of the prosecution history as soon as possible.

3. Non-Technical Description of the '965 Patent

79. The '965 Patent describes a cylindrical battery in which the positive and negative electrodes are rolled into a cylindrical form to provide an electrode assembly. The winding end positions of the positive and negative electrodes are specifically arranged in the circumferential direction of the electrode assembly cross-section to counteract the rotational stress caused by repeated charge and discharge cycles, thereby helping to prevent the core of the electrode assembly from collapsing and reduce the likelihood of internal short circuits that can otherwise result from electrode swelling in cylindrical cells.

E. The '735 Patent

1. Identification and Ownership of the '735 Patent

80. U.S. Patent No. 12,646,735 was duly and lawfully issued by the United States Patent and Trademark Office on June 2, 2026 to LG Energy Solution, Ltd.

81. The '735 Patent is set to expire on April 13, 2038.

82. The '735 Patent is titled "Secondary Battery and Method for Manufacturing the Same", names Jae Woong Kim, Hyung Kwon Kim, and Sang Uck Kim as co-inventors, and issued from U.S. Patent Application No. 19/313,233, which was filed on August 28, 2025, as a continuation of U.S. Patent Application No. 19/207,758, filed May 14, 2025, which claims priority through a chain of continuation applications ultimately tracing back to PCT Application No. PCT/KR2018/004366, filed April 13, 2018, and ultimately to Korean Patent Application Nos. 10-2017-0048645 (April 14, 2017) and 10-2018-0043191 (April 13, 2018).

83. A copy of the '735 Patent is attached as Exhibit 11.¹⁷

¹⁷ Complainants have ordered but not yet received a certified copy of the '735 Patent from the USPTO. Complainants will provide the certified copy of the patent as soon as possible.

84. A copy of the patent assignment record from the named inventors to LG Energy Solution, Ltd. is attached as Exhibit 12.¹⁸

85. A copy of the prosecution history of the '735 Patent is included as Appendix N.¹⁹

86. True and correct copies of each priority application for the '735 Patent and the prosecution histories for such applications are included as Appendices O to U.

2. Foreign Counterparts to the '735 Patent

87. Exhibit 4 lists each foreign patent, each foreign or domestic patent application (not already issued as a patent), and each foreign or domestic patent application that has been denied, abandoned, or withdrawn, corresponding to the '735 Patent, with an indication of the prosecution status of each such patent application.

88. No other foreign patents or foreign patent applications corresponding to the '735 patent have been filed, abandoned, withdrawn, or rejected.

3. Non-Technical Description of the '735 Patent

89. The '735 Patent describes a secondary battery with a notching tab part extending from the electrode collector—without active material coating—wound to form two or more overlapping layers that are cut to create a plurality of notching tabs, which are bent and welded to the battery to provide a multi-tab current collection structure. This battery design and method improves battery performance by reducing resistance and improves battery safety by providing increased mechanical strength.

¹⁸ Complainants have ordered but not yet received a certified copy of the assignment records for the '735 Patent from the USPTO. Complainants will provide the certified copy of the assignment records as soon as possible.

¹⁹ Complaints have ordered but not yet received a certified copy of the prosecution history for the '735 Patent from the USPTO. Complainants will provide the certified copy of the prosecution history as soon as possible.

F. Licensees to the Asserted Patents

90. An identification of licensee(s) to one or more of the Asserted Patents is provided in Confidential Exhibit 13C.

VI. RESPONDENTS' INFRINGEMENT OF THE ASSERTED PATENTS

91. As discussed above, the Accused Products are secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same, thereof that infringe one or more claims of the Asserted Patents. Examples of the accused secondary cylindrical batteries include the EVE 2170 and 18650 battery cells.²⁰

92. Samples of the Accused Products are available on request.

A. Infringement of U.S. Patent No. 8,420,257

93. Respondents infringe, either literally or under the doctrine of equivalents, claims 1-6 of the '257 Patent by importing the Accused Products, selling the Accused Products for importation, and/or selling the Accused Products within the United States after importation.

94. An exemplary claim chart comparing independent claims 1 and 4 of the '257 Patent to a representative Accused Product (the EVE 20P) is attached as Exhibit 14.

95. An exemplary claim chart comparing independent claims 1 and 4 of the '257 Patent to a representative Accused Product (the EVE 29V) is attached as Exhibit 15.

96. An exemplary claim chart comparing independent claim 1 of the '257 Patent to a representative Accused Product (the EVE 50E) is attached as Exhibit 16.

²⁰ "2170" and "18650" refer to various "form factors" of battery cells, and individual battery cells, such as the "20P" are additional sub-types of battery cells within those overall categories.

B. Infringement of U.S. Patent No. 11,749,866

97. Respondents infringe, either literally or under the doctrine of equivalents, at least claims 1, 4-6, and 9 of the '866 Patent by importing the Accused Products, selling the Accused Products for importation, and/or selling the Accused Products within the United States after importation.

98. An exemplary claim chart comparing independent claim 1 of the '866 Patent to a representative Accused Product (the EVE 50E) is attached as Exhibit 17.

C. Infringement of U.S. Patent No. 12,412,924

99. Respondents infringe, either literally or under the doctrine of equivalents, at least claims 1-9, 12, 14, 16-19, 21-25, and 27-30 of the '924 Patent by importing the Accused Products, selling the Accused Products for importation, and/or selling the Accused Products within the United States after importation.

100. An exemplary claim chart comparing independent claim 1 of the '924 Patent to a representative Accused Product (the EVE 50E) is attached as Exhibit 18.

101. An exemplary claim chart comparing independent claim 1 of the '924 Patent to a representative Accused Product (the EVE 40PL) is attached as Exhibit 19.

D. Infringement of U.S. Patent No. 12,412,965

102. Respondents infringe, either literally or under the doctrine of equivalents, at least claims 1, 4, 7-11, 14, 15, 19, 20, 22-24, and 26-33 of the '965 Patent by importing the Accused Products, selling the Accused Products for importation, and/or selling the Accused Products within the United States after importation.

103. An exemplary claim chart comparing independent claim 1 of the '965 Patent to a representative Accused Product (the EVE 40 PL, which is also representative of at least the EVE 50 PL) is attached as Exhibit 20.

E. Infringement of U.S. Patent No. 12,646,735

104. Respondents infringe, either literally or under the doctrine of equivalents, at least claims 1, 6, 10, 12, 13, and 15 of the '735 Patent by importing the Accused Products, selling the Accused Products for importation, and/or selling the Accused Products within the United States after importation.

105. An exemplary claim chart comparing independent claims 1 and 10 of the '735 Patent to a representative Accused Product (the EVE 40 PL, which is also representative of at least the EVE 50 PL) is attached as Exhibit 21.

F. Indirect Infringement

106. On information and belief, Respondents also indirectly infringe the Asserted Patents by inducing and/or contributing to infringement. On information and belief, Respondents have actual knowledge of the Asserted Patents, including through at least the filing of this Complaint and the companion action in the U.S. District Court for the Eastern District of Texas.

107. On information and belief, Respondents induce infringement of the Asserted Patents under 35 U.S.C. § 271(b) by knowingly and intentionally inducing others to directly infringe, literally or under the doctrine of equivalents, the Asserted Patents. On information and belief, the Accused Products are specially designed to contain features that infringe the Asserted Patents, and the Accused Products have no substantial uses other than those that infringe the Asserted Patents. For example, EVE has publicly stated in a press release that the accused "40PL adopts the innovative design of the tabless structure, which can effectively reduce the impedance and increase the power. With both high energy density and high power, this new product can replace multi-tab products (18650 1P/2P/3P battery packs or 21700 1P/2P battery packs) to better meet the requirements of light weight and miniaturization in the field of professional tools and industrial tools." See <https://www.evebattery.com/en/news-1238> (last visited July 21, 2026).

Similarly, EVE has stated that “EVE Energy innovatively launched the 21700 50PL tabless cell, further expanding the comprehensive cylindrical battery solution. With its unique economic and intrinsic safety, standardized design, and high reliability, it demonstrates EVE Energy's profound technology accumulation and service capabilities.” See <https://www.evebattery.com/en/news-1845> (last visited July 21, 2026). On information and belief, Respondents also actively promote the sale, use, and importation of the Accused Products in marketing materials, technical specifications, data sheets, webpages, press releases, and user manuals, as well as through their sales and distribution channels that encourage infringing sales, offers to sell, and importation of the Accused Products. Through these actions, Respondents have had the specific intent to induce, or were willfully blind to, inducing infringement of the Asserted Patents. On information and belief, Respondents continue to engage in these activities with knowledge of the Asserted Patents and knowledge that the induced acts constitute infringement.

108. On information and belief, Respondents also contribute to infringement of the Asserted Patents under 35 U.S.C. § 271(c) by providing or selling the Accused Products to others. The Accused Products are specially designed and made for use in an infringing manner and are not staple articles of commerce suitable for any substantial non-infringing use. On information and belief, Respondents continue to engage in these activities with knowledge of the Asserted Patents and knowledge that their acts contribute to infringement.

VII. SPECIFIC INSTANCES OF UNFAIR IMPORTATION AND SALE

109. On information and belief, the Accused Products are manufactured overseas and then sold for importation into the United States by Respondents or on their behalf, imported into the United States by Respondents or on their behalf, and/or sold after importation by Respondents or on their behalf.

110. For example, Exhibit 22 includes receipts for the domestic purchase of an accused and infringing EVE 40PL battery and additional receipts for the domestic purchase of accused and infringing EVE 50PL, 50E, 29V, and 20P batteries. On information and belief, the purchased EVE batteries are made in China. For example, EVE’s website lists a series of locations in China as EVE’s “Headquarter and production base.” See <https://www.evebattery.com/en/about> (last accessed July 21, 2026). EVE does not list any locations outside of China as a “production base.” *Id.* Similarly, EVE touted its “Lighthouse” factory in China as “No. 1 in China for cylindrical battery shipments.” See <https://www.evebattery.com/en/news-1891> (last accessed July 21, 2026). The order and shipping paperwork for the purchased EVE batteries indicate the products were shipped to an address within the United States, showing that Respondents import the products, sell them for importation, and/or sell them within the United States after importation.

111. Exhibit 22 also includes (i) receipts for the domestic purchase of additional Respondent products containing the accused and infringing EVE batteries and (ii) images showing the accused and infringing EVE batteries contained within the additional Respondent products. To determine that EVE battery cells were contained within the additional Respondent products, the outer casings of the rechargeable battery packs were removed (e.g., with a screwdriver) to expose the cylindrical battery cells therewithin. The battery cells are indicated with a manufacturer name (i.e., “EVE”) indicating that the battery cells were manufactured by EVE and subsequently incorporated into the additional Respondent products. *Id.*

112. More specifically, Exhibit 22 shows Bosch products containing the accused and infringing 40PL EVE batteries (“the Bosch Products”), Koki/Metabo products containing the accused and infringing 40PL EVE batteries (“the Koki Products”), and Chervon/Ego products containing the accused and infringing 20P EVE batteries (“the Chervon Products”).

113. On information and belief, the EVE batteries contained within the Bosch products are made in China. For example, the packaging for the Bosch Products indicates that the battery cells within the instrumentalities are made in China. Exhibit 22.

114. On information and belief, the EVE batteries contained within the Koki products are made in China. For example, the packaging for the Koki Products indicates that they are manufactured in China. Exhibit 22.

115. On information and belief, the EVE batteries contained within the Chervon products are made in China. For example, the packaging for the Chervon Products indicates that they are manufactured in China. Exhibit 22.

116. The order and shipping/pickup paperwork for the purchased Bosch Products, Koki Products, and Chervon Products indicates the products were shipped to or picked up at an address within the United States. Exhibit 22. This documentation thus shows that Respondents either import the products, sell them for importation, and/or sell them within the United States after importation.

VIII. HARMONIZED TARIFF SCHEDULE NUMBERS

117. On information and belief, the Accused Products are classified under at least the following subheading of the Harmonized Tariff Schedule of the United States: 8507.60.00. This classification is exemplary in nature and not intended to restrict the scope of any exclusion order or other remedy ordered by the Commission.

IX. THE DOMESTIC INDUSTRY RELATING TO THE ASSERTED PATENTS

118. A domestic industry, as set forth in 19 U.S.C. § 1337(a)(2), is in the process of being established in relation to Complainants' products that are protected by the Asserted Patents. As set forth below and in the Confidential Declaration of Sumin Lee, Complainants have taken and are taking tangible, concrete steps toward establishing an industry in the United States related

to articles protected by the Asserted Patents, and there is a significant likelihood that such an industry will be established in the future. *See* ¶¶ 119-122; Confidential Exhibit 23C.

A. Technical Prong

119. Representative claim charts, attached as Confidential Exhibits 24C-29C, show that Complainants' cylindrical batteries (the "Domestic Industry Products") are protected by at least one claim of each of the Asserted Patents.²¹

120. Samples of the Domestic Industry Products are available on request.

B. Economic Prong

121. Complainants are in the process of establishing U.S. manufacturing operations for the Domestic Industry Products. Specifically, in March 2023, LGES announced a planned investment of roughly \$5.5 billion for a manufacturing complex in Arizona. This investment marks the largest single investment ever for a stand-alone battery manufacturing complex in North America.

122. LGES Arizona's complex comprises two separate plants: (i) a cylindrical battery cell plant, in which LGES has committed to invest approximately \$3.2 billion, and (ii) a separate plant that will produce lithium iron phosphate pouch-type cells for energy storage systems.

123. The Domestic Industry Products will be manufactured at the cylindrical battery cell plant in Arizona, which is substantially complete with commercial production expected to begin in late 2026. LGES has made and committed substantial investments in the United States in equipment, real estate, and labor; LGES has already hired and paid employees; and LGES has

²¹ The Domestic Industry Products are protected by additional claims of the Asserted Patents, and Complainants may establish the technical prong of the domestic industry requirement through claims other than those explicitly charted.

secured customer supply commitments—all directed toward commencing and continuing mass U.S. production of the Domestic Industry Products.

124. Details regarding these investments are set forth in the Confidential Declaration of Sumin Lee. Confidential Exhibit 23C.

X. RELATED LITIGATION

125. LGES is concurrently filing a complaint in the U.S. District Court for the Eastern District of Texas alleging infringement of the Asserted Patents against Respondents.

126. Complainants are not aware of any other litigation related to the Asserted Patents.

XI. RELIEF REQUESTED

127. Complainants respectfully request that the Commission:

(a) Institute an investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, with respect to Respondents' violations of that section based on the importation into the United States, sale for importation, and/or sale within the United States after importation of secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same, that infringe one or more claims of the Asserted Patents;

(b) Schedule and conduct a hearing pursuant to Section 337(c) for the purposes of (i) receiving evidence and hearing argument concerning whether there has been a violation of Section 337, and (ii) following the hearing, determining that there has been a violation of Section 337;

(c) Issue a permanent limited exclusion order pursuant to 19 U.S.C. § 1337(d) forbidding entry into the United States of certain secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same, that infringe one or

more claims of the Asserted Patents and are manufactured, imported, sold for importation, and/or sold after importation by or on behalf of Respondents, their subsidiaries, related companies, and agents;

(d) Issue permanent cease and desist orders pursuant to 19 U.S.C. § 1337(f) prohibiting Respondents, their domestic subsidiaries, related companies, and agents from engaging in the importation, sale for importation, marketing and/or advertising, distribution, offering for sale, sale, use after importation, sale after importation, and other transfer within the United States (except for exportation) of secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same, that infringe one or more claims of the Asserted Patents;

(e) Impose a bond pursuant to 19 U.S.C. § 1337(j) on the importation of any secondary cylindrical batteries, components thereof (e.g., top cap assembly, electrode windings, separator, battery housings, and assemblies thereof), and products containing the same, that infringe one or more claims of the Asserted Patents during the 60-day Presidential review period;

(f) Issue such other and further relief as the Commission deems just and proper under the law, based on the facts determined by the investigation and the authority of the Commission.

Dated: July 21, 2026

Respectfully submitted,

/s/ S. Alex Lasher

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